

Mohd. Rizvan v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 2 February 2023 · Writ - C No. 38897 of 2022 · **Writ petition disposed of finally, without expressing any opinion on the merits, with a direction to the licensee (respondent Nos. 2 and 3) to take a final call on the petitioner's pending representation dated 15.11.2022 strictly in accordance with law and taking into account the Division Bench judgment in Gaurav Sharma, within three months of production of a certified copy**

HEADNOTE

A tenant occupying a shop for over two decades applied for a new electricity connection after the landlord, following a dispute, disrupted the existing supply; the licensee declined on the ground that the applicant was not the owner and would not be given a connection without the owner's permission. The petitioner confined his prayer to the consideration of his pending representation. Noting the settled position, reflected in the Division Bench in *Gaurav Sharma v. State of U.P.*, that a genuine occupier who is not the owner may obtain a connection under the U.P. Electricity Supply Code, 2005 by furnishing an Annexure 4.2 indemnity bond in aid of Clause 4.4, and that a connection cannot be declined merely because the landlord refuses a no-objection certificate in a landlord-tenant dispute, the Court disposed of the petition — without expressing any opinion on the merits — directing the licensee to take a final decision on the representation strictly in accordance with law and taking into account *Gaurav Sharma*, within three months.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant/occupier's application for a connection refused for want of the owner's NOC; disposal by direction to decide in light of *Gaurav Sharma*

QUESTION

Where a tenant is refused a new connection on the ground that he is not the owner and lacks the landlord's no-objection certificate, how is his grievance to be dealt with?

HOLDING

The Court, without expressing any opinion on the merits, disposed of the petition by directing the licensee to take a final call on the petitioner's pending representation strictly in accordance with law and taking into account the Division Bench in *Gaurav Sharma* — which holds that a genuine occupier who is not the owner is entitled to a connection under the Code by furnishing an Annexure 4.2 indemnity bond in aid of Clause 4.4, and that a connection cannot be declined merely because the landlord refuses an NOC in a landlord-tenant dispute — within three months. ¶ (order dated 2.2.2023)

LIMITING FACTS

Petitioner a tenant (tailor) of a Kanpur shop for ~22 years; landlord disrupted supply after a dispute; licensee refused a fresh connection for want of the owner's permission; petitioner confined his prayer to consideration of his representation dated 15.11.2022.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A genuine occupier who is not the owner may obtain a connection under the Code on an Annexure 4.2 indemnity bond in aid of Clause 4.4, without the owner's NOC. Lead authorities: *Gaurav Sharma v. State of U.P. & 4 Others* [SCJ-027]. ¶ (order dated 2.2.2023)

landlord-noc-refusal-in-dispute-no-bar-to-tenant-connection A connection cannot be declined to a tenant merely because the landlord refuses a no-objection certificate, especially in a landlord-tenant dispute. ¶ (order dated 2.2.2023)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE PETITIONER'S ENTITLEMENT TO A FRESH CONNECTION

The Court expressly refrained from expressing any opinion on the merits, leaving the licensee to take a final call on the representation in accordance with law and in light of *Gaurav Sharma*. ¶ (order dated 2.2.2023)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Gaurav Sharma v. State of U.P. & 4 Others</i> Writ-C No. 8396 of 2018 (Allahabad High Court, DB), decided 18 September 2018 [SCJ-027] Allahabad High Court (DB)	Under the U.P. Electricity Supply Code, 2005, an applicant who is not the owner of the premises but is a genuine occupier may obtain an electricity connection by furnishing an Annexure 4.2 indemnity bond (with proof of occupation such as a power of attorney, rent receipt or lease deed), the object being only to deny connections to trespassers/house-grabbers; a connection cannot be refused merely because the owner declines a no-objection certificate, particularly in a family/landlord dispute.	Relied on as the governing Division Bench authority; the licensee was directed to decide the petitioner's representation taking it into account. ¶ (order dated 2.2.2023)		Petitioner Relied on
<i>Dilip (dead) & Ors. v. Satish & Ors.</i> Criminal Appeal No. 810 of 2022 (arising out of SLP (Crl.) No. 8917 of 2019), decided 13 May 2022 Supreme Court	Cited by the petitioner in support of a tenant/occupier's entitlement to essential services.	Referred to by the petitioner in support of his submission; the Court disposed of the petition without deciding the merits. ¶ (order dated 2.2.2023)		Petitioner Referred

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.